



DECISION

Complaint No. : POS/984/2025/F-11

Name and address of the complainant : Mr. Atif & others, Residents of Glamour Garden (Ayesha Garden), Plot No. 364/2/3, Garden East, Karachi

Name of the Agency Complained against : Sindh Building Control Authority (SBCA)

Name & Designation of Investigating Officer : Syed Ali Mumtaz Zaidi, (PAS), Advisor-F

Vetted by : --

Subject :

COMPLAINT TO RESTRICT THE BUILDER FROM CONSTRUCTION OF ADDITIONAL FLOORS IN VIOLATION OF APPROVED BUILDING PLAN ON PLOT NO. 364/2/3.

THE COMPLAINT:

Mr. Atif and others in their complaint dated 06.02.2025 alleged that the builder of *Glamour Garden (Ayesha Garden)* situated at Plot No.364/2/3, Garden East, Karachi is planning to raise two additional storeys over the existing Ground + 03 floors building constructed in 2004. They stated that such construction would be illegal and in violation of the approved building plan. The complainants further contended that the existing structure is not designed to bear the additional load, which poses a serious threat to the lives and safety of the residents. They requested immediate intervention of the competent authority to stop the unauthorized construction and to ensure the safety of the occupants. They also mentioned that in case of inaction they would have no option but to file lawsuit in the matter.

PROCEEDINGS:

2. The complaint was admitted under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date) subject to submission of original signed complaint addressed to the Provincial Ombudsman Sindh along-with copy of their CNICs and Affidavit on form-A. These mandatory documents/requirements have not been submitted by complainants despite letter dated 27.02.2025 followed by multiple reminders, last dated 10.06.2025.

FINDINGS:

3. From the above, it is clear that after filing of complaint, the complainants are not interested to pursue their complaint as they did not respond to the letters nor did they follow up the matter in any manner.

4. Since the complaint concerns public safety, the matter was proceeded upon under Section 9(1) of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 and notice was issued to the concerned Agency.

5. On 16.12.2025 the Deputy Director, District East, SBCA appeared in person before the Investigating Officer and submitted report dated 12.12.2025 that site inspection was conducted by the field staff and it was observed that the premises in question is consisting of Basement + Ground + 03 floors which are old and occupied. He informed that no fresh construction was observed at site. He attached photographs of the premises in support of his report.

6. Subsequently on 13.01.2026 hearing was again fixed to ascertain the status which was attended by Assistant Director, District East, SBCA. He repeated the contents of his earlier report dated 12.12.2025 and submitted coloured photograph of the subject premises showing no fresh construction.

7. After thorough examination it has been observed that the complainants in their complaint expressed only an apprehension that the builder *was planning* to raise additional floors but situation on ground clearly indicates that no construction activity had actually commenced at the time of filing of the complaint. The report and photographs submitted by the officers of the Sindh Building Control Authority has conclusively established that no fresh construction activity has been initiated at the subject premises. However the para-2 of the report of Deputy Director vide No.SBCA/DD/District East/2025/320 dated 12.12.2025 states that no records have been traced to ascertain the legal status of the approved building plan, if any.

DECISION:

8. Since it's a matter of ascertaining status of construction, Director General, Sindh Building Control Authority, Karachi is directed to trace record of building in question and take necessary action accordingly.

9. This also disposes of an identical complaints No.POS/1369/2025/F-16 and POS/4104/2025/F-60 of the same complainants.

Given under my hand and seal of office



Sd /-
(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz. PAS
Ombudsman Sindh

Karachi, dated 26th January, 2026